

CONSTITUTION OF THE NERIST MANIPUR STUDENTS' UNION (NEMSU)



NERIST, Nirjuli- 791109
Itanagar, Arunachal Pradesh

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PREFACE

The Constitution of the NERIST Manipur Students' Union (NEMSU) which was written on the 17th of October, 1988 has been in place hitherto, for more than three decades. Only a few type-written copies of the Constitution is all we have got and this creates serious accessibility problems to the members of the NEMSU.

With the passage of time, although a very stable structure of Constitution has been laid by our predecessors and seniors which indeed stood the test of time, we feel the great need of making our valued Constitution accessible to all the members; besides the need for minor amendments. We also hope this will help in much efficient implementation of our Constitution.

In this version, various minor amendments have been made by me- the President in consultation with the senior members.

I would like to encourage my upcoming Office successors as well to study our Constitution and make necessary amendments from time to time to eliminate loopholes, if any for even a stronger NEMSU.
Long live NEMSU!

Nirjuli;
11th August, 2024

Tristan Namaram
President
NEMSU (2023-2024)

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Preamble

We the students of NERIST, representing the state Manipur formed a Union called NERIST Manipur Students' Union on 17th October 1988 in the presence of all the members.

We do hereby adopt this constitution in order to foster unity and create oneness among the student communities as a whole and the students of Manipur, in particular, to work together for the welfare and to safeguard the rich cultural heritage of the state and identify too, as well as to contribute to NATION BUILDING task through our professional service and dedication on this auspicious day.

PART-A
INTRODUCTION

ART NO.1

- a)** There shall be a students' union called NEMSU acronym of NERIST MANIPUR STUDENTS' UNION.
- b)** All the students representing the state of MANIPUR in NERIST shall compulsorily be the members of this union after formally registering himself/herself according to art 3(b).
- c)** Once become NEMSU member, he/she will abide by the constitution of the union.
- d)** NEMSU shall not be affiliated to any political party indulging in biasness.

AIMS & OBJECTIVES

ART NO.2

- a)** To foster unity and oneness among the students representing the state of MANIPUR. To work for the welfare of the students from Manipur and to strive for excellence in academic field as well as other fields related to student life.
- b)** To work in co-operation with others such union in NERIST for mutual co-existence, peace and for creating academic atmosphere in NERIST
- c)** To safeguard the cultural identity of MANIPUR state.
- d)** To motivate the students to take part in nation building task through professional service and dedication.

PART-B
PRIMARY MEMBERSHIP

ART NO.3

- a)** Those students representing the state of MANIPUR in NERIST shall compulsorily be the primary member of NEMSU.
- b)** To enroll himself/herself as primary member of NEMSU, new students shall register to the Union paying Rs.100/- as a membership fee and every primary member shall pay a semester fee of Rs.250/- every semester.
- c)** The amount stated above in Art.3(b) is subjected to change from time to time as deemed fit by the decision of the Executive Body approved by the advisory committee.
- d)** In a General Body Meeting the quorum for any decision to be taken is half of the total members of the Union.
- e)** All the primary members of NEMSU shall play equal role in upholding the Constitution of the Union.
- f)** The primary members of NEMSU shall meet at least once in a semester exclusive of the emergency meeting held as when necessary.
- g)** Primary members of NEMSU with their sense of dedication shall work and co-operate with the Executive Body in striving to achieve aims and objectives of this Union described under Art 2.
- h)** Any primary member in case of breach of Constitution is liable to punishment. Thenature of punishment as deem fit by the Executive Body as in Art 14.
- i)** Any primary member who remain absent himself/herself from three General Body Meeting consecutively lead to punishment under Art 3(h) except for reasons beyond control, he/she need to give prior information in the form of application addressing to the President of NEMSU.
- j)** Decisions of General Body shall be final and binding.

EXECUTIVE BODY

ART NO.4

- a)** NEMSU shall have an Executive Body consisting of eleven members. Executive Body is the sole working and decision making in consultation with the Advisory Committee. The term for an Executive Body shall be from August to August of the next year (i.e one year) and shall cease to function from the day of expiry of one-year period unless otherwise circumstances dictate imposition of Art 8(f).
- b)** Not less than five days prior to expiry of the present Executive Body term, Election/Selection for the new Executive Body members shall be held and handing of charges shall be done on the 5th day. The mode of Election for the Executive Body must be secret ballot box or mutual consensus as deem fit by the Election Committee described under Art 8.
- c)** The Executive Body shall comprise the following portfolio:
 - 1. President
 - 2. Vice President
 - 3. General Secretary
 - 4. Asst. General Secretary
 - 5. Finance Secretary
 - 6. Treasurer
 - 7. Games & Sports Secretary
 - 8. Asst. Games & Sports Secretary
 - 9. Social & Cultural Secretary
 - 10. Asst. Social & Cultural Secretary
 - 11. Publicity & Information Secretary
 - 12. Asst. Publicity & Information Secretary
 - 13. Chief Auditor
 - 14. Auditor
 - 15. Educates Secretary
 - 16. Asst. Educates Secretary
 - 17. Property Secretary
- d)** Executive Body Members shall be taken the oath of office secrecy by the outgoing President.
- e)** Quorum for any decision to be taken in an Executive Body Meeting shall be half of the total strength of the Executive Body Members.
- f)** To be an Executive Body Member, one shall be at least for one primary member of the Union.
- g)** The executive Body Members shall meet at least once a month exclusive of the emergency meeting held for a specific purpose as circumstances demands.
- h)** Any Executive Member who remains absent from any Executive Member meeting without prior information on valid ground is liable to dismiss as deem necessary by the President in consultation with General Secretary and advisory Committee.

PART-D

State representative to Students' Union of NERIST

ART NO.5

- a) The member of NEMSU elected/selected as state representative shall be from Degree Module.
- b) Election/Selection of the state representative shall be done on the same day or on the other day as time demands and shall follow the same mode of Election/Selection as desirable under Art 4(c).
- c) He/She shall appraise the problems faced by the NEMSU member if any.
- d) State representative shall not hold any post/portfolio in the Executive Body of NEMSU.

Part-E

Para-1

President

President is the supreme head of the Union, whose task is to uphold the Constitution. President shall chair Executive and General Body Meeting. The decision taken in either of the meetings needs to seek President's approval. President shall be a primary member of NEMSU and shall be from the degree module.

Power and Function of the President:

1. President shall maintain the dignity of this high Office.
2. He shall have the power to Executive or General Body, any decision taken by these bodies to reconsider it, as President deems necessary and shall have the power to drop any topic, if President thinks irrelevant or unwise to discuss further.
3. President shall look after overall functioning of each member of the executive or General Body and shall have the power to issue a showcause notice to any member who is absent from Executive/General Body Meeting without prior information and reply to this showcause notice shall be given within five days from the date of issue by the concerned members.
4. The President shall have the power to ask any member of the Executive Body, other than the General Secretary to step down from the respective post, if the President finds his/her performance unsatisfactory or if he/she is working against the common interest of the student communities representing the state, Manipur and if/she violates the CONSTITUTION.
5. The President, in consultation with the General Secretary shall only have the power to call General Body Meeting.
6. In case of any post/portfolio lying vacant, the President in consultation with the General Secretary can assign the Post/Portfolio to any eligible person until further Election/Selection. Any post/portfolio shall not lie vacant for a period not more than fifteen days.
7. All resignation letters shall be addressed to the President and the President in consultation with the General Secretary has the power to accept the resignation of any Executive Member.
8. In case of the President, resignation letter shall be addressed to the Vice-President and shall in this case act according to the above point number (6)

Para-2

Vice-President:

Vice-President (V.P) shall be a primary member of NEMSU and shall be from the Degree Module.

Power and Function of the Vice-President:

1. The V.P. shall assist President in upholding the Constitution and carry out the task assigned by the President
2. In absence of President, Vice-President shall act as President as in Para-I and shall exercise all the powers vested in the name of the President. Within 15 days the V.P. shall call a General Body meeting and elect/select a new President.
3. Vice-President shall head any committee formed to carry out any function, task/enquiry as is endorsed in the Executive Body Meeting or as in ordered by the President.
4. Complaints lodged against any primary member or executive member shall be addressed to the V.P. who in turn appraises the President and the General Secretary and necessary action to be taken as decided by the Executive Body Members.

Para-3

General Secretary_(Gen. Secy.):

General Secretary shall be the executive head of the Union. Gen. Secy. In coordination with all the Executive shall execute the decisions taken in either of the Executive/General Body Meetings after only approved by the President. General Secy. shall be a primary member of NEMSU and shall be from Diploma/Degree Module.

Power and Function of Gen. Secy.:

1. Gen. Secy. shall have the key role to play for the development and right functioning of the Union.
2. Gen. Secy. shall check out various plans for the development of the Union and welfare of the student communications and bring up for discussion in either of the Executive/Body Meeting.
3. Gen. Secy. in consultation with the President shall have the power to convene an Executive/General Body Meeting, if President deems fit.
4. Gen. Secy. / President shall have the power to invite any Advisory Committee member to attend in an Executive Body Meeting if President/Gen. Secy. feels the importance of their presence provided they shall not have any voting rights.

Para-4

Assistant General Secretary (A.G.S):

A.G.S. shall assist Gen. Secy. in executing the decisions taken in the Executive/General Body Meeting. In absence of Gen. Secy., A.G.S. shall act as Gen. Secy. and all the powers vested in the name of Gen. Secy. be executed by the A.G.S. A.G.S. shall be a primary member of NEMSU for at least 1 year and shall be from any module.

Para-5

Finance Secretary (Fin. Secy.):

Fin. Secy. shall be a primary member of NEMSU for at least one year and shall be from any module.

Power and Functions of the Fin. Secy.:

1. Fin. Secy.'s main function is to maintain financial record till date.
2. He/She shall formulate some scheme for fund drives from time to time. Such scheme shall be implemented only after the approval of Executive Members.

Para-6

Treasurer:

Treasurer shall be a primary member of NEMSU for at least one year and shall be preferably girls unless circumstances dictates or otherwise. Treasurer shall keep the fund of the Union in short; he/she is the bank of the Union.

Para-7

Social & Cultural Secretary:

He/She shall be a primary member of NEMSU for at least one year and shall be from any module.

Power and Functions:

- i) He/She shall organize and carry out any social and cultural activities according to the directions adopted by the Executive Body.
- ii) He/She shall strive to maintain and safeguard the cultural identity of Manipur.

Para-8

Assistant Social & Cultural Secretary:

1. He/She shall be a primary member of NEMSU for at least one year and shall be preferably girls.
2. He/She shall assist the Social & Cultural Secy. in carrying out any Social & Cultural Secy. in carrying out any Social & Cultural activity.
3. He/She act as Social & Cultural secy. in the absence of the latter.

Para-9

Games and Sports Secretary:

1. He / She shall be a primary member of NEMSU for at least one year.
2. He / She shall organize and carry out any games and sports activity as decided by the executive Body.
3. He / She shall motivate the others to bring out their games & sports talents.

Para-10

Asst. Games and Sports Secretary:

1. He/She shall be a primary member of NEMSU for at least one year.
2. He/She shall assist the Games and Sports Secretary in carrying out activities related to games and sports.
3. He/She shall act as Games and Sports Secretary in the absence of the latter.

Para-11

Educrates Secretary:

1. He/She shall be a primary member of NEMSU for at least one year.
2. He/She shall motivate others to bring out their literary talents.
3. He/She shall organize/carry out anything related to its function according to the directions adopted by the executive body.

Para-12

Asst Educrates Secretary:

1. He/She shall be a primary member of NEMSU for at least one year.
2. He/She shall assist the Educrates Secretary in carrying out anything related to its functions.
3. He/She shall act as Educrates Secretary in the absence of the latter.

Para-13

Chief Auditor:

1. He/She shall be a primary member of NEMSU for at least one year.
2. He/She shall be predecessor batch of the Auditor.
3. He/She shall supervise and work hand in hand with the auditor in auditing the financial records.

Para-14

Auditor:

1. He / She shall be a primary member of NEMSU for at least one year and it is an independent post.
2. He / She shall audit the financial record at least once in a semester and shall countersign all the records after auditing.
3. In case, he/she requires any subordinates to assist him/her in carrying out his/her functions, he/she have the power to select a team of his/her own choice. These subordinates shall not have the power to countersign in any records as it vested to the Auditor and they shall function under the guidance of the Auditor.

Para-15

Publicity & Information Secretary:

1. He / She shall be a primary member of NEMSU for at least one year and shall take the full responsibility of any publicity works of NEMSU inside and outside NERIST.
2. He / She shall be considered as the key of information of the Union members.
3. He / She shall have the bio-data or any considerable information of the NEMSU members which is related to the Union for the benefit of NEMSU members.

Para-16

Asst. Pub. and Info. Secretary:

1. He/She shall be a primary member of NEMSU for at least one year.
2. He/She shall assist Pub. and Info. Secretary in publicity works of NEMSU inside and outside NERIST.
3. He/She shall act as Pub and Info Secretary in the absence of the latter.

Para-17

Property Secretary:

1. He/She shall be a primary member of NEMSU for at least one year.
2. He/She shall keep all the properties of NEMSU with a clear document of the properties.
3. He/She shall accept requests from other Unions to borrow the properties of NEMSU.

Part-F
MONEY SANCTIONING

ART NO.6

- a)** The Union shall have a joint account at the nearest Bank and the following members shall be the signatories for the account:
- 1. President**
 - 2. General secretary**
 - 3. Vice-president**
 - 4. Finance Secretary**
 - 5. Treasurer**
 - 6. A member from the advisory Committee.**
- b)** At the time of withdrawing money from the Bank, any two of the above mentioned signatories and the President shall be considered valid.
- c)** The proposal to any sanction of money shall be channelized through the Gen. Secy. who then seek the President's approval, unless, otherwise considered unsanctioned.
- d)** At the time of emergency, Gen. Secy. shall have the power to sanction not more than Rs. 1,000 without President's approval. In such cases, Gen. Secy. shall seek the President's approval later on but within 10 days.
- e)** Amount not more than Rs. 10,000 shall be with the Treasurer in case of emergency.

STANDING COMMITTEE

PART-G

ADVISORY COMMITTEE

ART NO.7

- a)** The Advisory Committee of NEMSU shall consist of the following members:
1. Ex-President
 2. Ex-General Secretary (if he/she is not the member of the newly formed Executive Body).
- b)** Main function of the Advisory committee shall be to advise on the smooth functioning of the Union and on any decisions as and when referred to by the Executive/General Body meeting.
- c)** Advisory committee members may be present in an Executive Body meeting as desired by the President/Gen. Secy. but shall not have voting rights.
- d)** Advisory Committee may sue this good Office to influence in achieving unity/peace/subdue tense atmosphere, etc.

PART-H

ELECTION COMMITTEE

ART NO.8

- a)** Election Committee(EC) is to conduct Election/Selection of the new executive body and shall comprise the following members:
1. Out-going President (Chairman)
 2. Out-going Vice-President (Member)
 3. Out-going Gen. Secy. (Member)
 4. Out-going Asst. Gen. Secy. (Member)
 5. Advisor/SUN Representative

- b)** Mode of election shall either be secret ballot or on consensus. In case of consensus candidate, he/she shall be at least supported by 5 members. One member can support only one candidate.
- c)** Election Committee shall have the power to decide as whether secret ballot or selection is to be done according to the situation.
- d)** Election Committee shall formulate rules and regulations from time to time which may suit the prevailing situation, which shall be made known to each and every member 5 days prior to Election/Selection.
- e)** In case any member of the EC desires to contest for the second time, he/she shall be relieved from the EC and the remaining members shall have the power to select any member of the Union to be member of the EC.
- f)** The present executive body may be asked to carry out as caretaker executive for a period not more than one month and not more than twice if the EC feel that the situation is not favorable to conduct election. In such case care taker executive body shall have all the power vested on the executive body.

PART-I **IMPEACHMENT**

ART NO.9

President's Impeachment:

- a)** If any member of the Union finds reasonable ground to consider that the President is violating the Constitution or working against the common interest of the member community or inefficient in executing his/her duties, he/she (member) shall submit a written impeachment motion to the V.P. supported by at least 20 members.
- b)** V.P. in such case shall have the power to convene a special General Body Meeting within 10 days of the receive if the written motion.
- c)** In the General Body Meeting, if two-third of the members present support the impeachment motion, then President shall be considered impeached.

ART NO.10

Impeachment of V.P. and Gen. Secy.:

In case of the V.P. and Gen. Secy., the Written impeachment motion shall be submitted to the President who then shall execute the same as described under Art- 9 (b) and Art- 9 (c).

PART- J **AMENDMENT OF THE CONSTITUTION**

ART NO.11

- a)** Any article/paragraph of this Constitution shall be amended if 2/3 (two-third) of the members present in the General Body Meeting support the amendment motion.
- b)** Not less than 5 days prior to the amendment, every member shall make aware of the Article/Paragraph to be amended.
- c)** In case, if the Executive Members find necessary to amend any Article/Paragraph of this constitution, it should first be passed by the Executive Body and then shall be produced in the General Body Meeting as described in Art. 11 (a) and (b) for the final amendment.
- d)** In case of desirability to add/subtract any Article in this constitution, the features described in Art. 11 shall be followed.

PART- K

MISCELLANEOUS

ART NO.12

All members shall be treated equal and there shall be no discrimination on cast, religion, sex, place of birth et al negatively.

ART NO.13

All members shall participate in any functions/activities carried out from time to time by NEMSU.

ART NO.14

Nature of punishment in case of breach of Constitution or working against the common interest of the member community in NERIST shall be imposed a fine of maximum Rs. 500/- or dismiss from the Executive Membership/Primary Membership or both as deem fit by the Executive Body.

ART NO.15

SPECIAL POWER OF THE UNION

- a)** NEMSU shall have the authority as to decide which act of the Constitution will be implemented to the member who is working against common interest and act as obstacle in the welfare of the Union.
- b)** The Union shall have the authority to inform to the parents/guardians of any member in academic career if needed and character in harming the reputation of the member community. In such case act according to Art- 14 as the Executive body deem necessary after vetting with the Advisory Committee.
- c)** The Executive Body while exercising and executing Art- 14 and Art- 15 shall seek approval of the Advisory Committee.
- d)** The Union shall have the trend and traditional celebrations of functions namely Annual Freshers' Social Meet, Farewell, etc. The batch just above and the batch just below respectively shall take up the initiative of the aforementioned functions. For such functions, an organizing committee shall be formed to officiate the same comprising any number of members and Vice-President of NEMSU shall chair such committee in coordination with all the members of the Union.

TOKEN OF MERIT

NEMSU shall confer some token of merit to those who score excellent academic records under the following criteria:

- a)** The award shall be conferred to all the bonafide members of NEMSU (satisfying the under mentioned conditions) in a Modular pattern.
- b)** The awardee shall score CGPA above 8.00 in a Module.
- c)** As a stringent case, the CGPA of the Pre-final year shall be considered only for the Final Year Students.
- d)** As the Applied Science Stream does not offer Diploma course, the four (4) year Degree Module shall be divided into two years and the CGPA of the two years shall be taken separately in order to compensate with the students of the other Disciplines.
- e)** The NEMSU shall also confer some token of merit to those who bring good records in the All India Competitions as circumstances demand.
- f)** The Future Executive Body shall formulate any consequent changes in executing the above rules and shall amend/include any provisions accordingly.

NEMSU CALENDAR

NEMSU shall be following a calendar and shall implement its task tentatively according to the following deadline:

July-December Semester

- a)** Annual Fresher's Social Meet- August(NEMSU)
- b)** Representation of Cultural show in the General Fresher's Meet- August(NERIST)
- c)** Registration of new freshers and collection of Semester/Annual fee- August
- d)** General Body Meeting for Election/Selection of new executive body, Oath taking and handing over of the charge- August
- e)** A tentative Games & Sports activity- October

January-May Semester

- a)** A tentative General Body Meeting- January
- b)** A picnic program- February
- c)** Annual Bankim Memorial Trophy- March
- d)** Representation of Cultural show in Bihu Festival- April
- e)** Annual Farewell Party for the outgoing students- May
- f)** Selection/Election of state representative to SUN- May

N.B.: The above Schedule exclude General/Executive Body Meeting and normal Executive Body Meeting held from time to time.